

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jennine Giordano	Team: Team # 3	CCRB Case #: 200703264	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/02/2007 10:30 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	Precinct: 47	18 Mo. SOL 9/2/2008	EO SOL 9/2/2008	
Date/Time CV Reported Mon, 03/05/2007 11:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/08/2007 12:28 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Mchugh	09788	925715	047 PCT
2. SGT Arnold Torres	01511	898645	047 PCT
3. LT Erik Hernandez	00000	901689	047 PCT
4. POM Michael Nestler	22906	937175	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT John Gazzola	00424	925338	047 PCT
2. POM Tracy Day	17451	900104	047 PCT
3. POM Tyrone Furby	24178	922381	047 PCT
4. SGT James Flannery	00000	915726	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Michael Nestler	Abuse: PO Michael Nestler frisked § 87(2)(b)	§ 87(2)(b)
B.POM Michael Mchugh	Discourtesy: PO Michael Mchugh spoke obscenely to § 87(2)(b)	§ 87(2)(b)
C.LT Erik Hernandez	Discourtesy: Lt. Erik Hernandez spoke obscenely to § 87(2)(b)	§ 87(2)(b)
D.SGT Arnold Torres	Discourtesy: Sgt. Arnold Torres spoke obscenely to § 87(2)(b)	§ 87(2)(b)
E.LT Erik Hernandez	Discourtesy: Lt. Erik Hernandez acted rudely toward § 87(2)(b)	§ 87(2)(b)

Synopsis

On March 2, 2007 at approximately 11:00 p.m., § 87(2)(b) filed this complaint with the Internal Affairs Bureau (IAB) Command Center regarding an incident that occurred a half hour earlier. IAB log # 07-08444 (encl. 3-3a) was generated and the case was referred to the Civilian Complaint Review Board (CCRB) on March 8, 2007. § 87(2)(b) alleged that at approximately 10:30 p.m., his § 87(2)(b) nephew, § 87(2)(b) was robbed of his cell phone by two unidentified teenagers. After driving around the neighborhood, § 87(2)(b) and § 87(2)(b) located the two teenagers in the vicinity of § 87(2)(b) in the Bronx. § 87(2)(b) called 911, which prompted officers from the 47th Precinct to arrive on the scene. Several of the officers that arrived immediately frisked two individuals standing near § 87(2)(b). § 87(2)(b) explained to the officers that the individual who stole § 87(2)(b)'s phone had already left the scene. An officer, who was identified from the investigation as PO Michael Nestler, approached § 87(2)(b) and allegedly frisked him (Allegation A). PO Michael Nestler, identified from his tax registry number on the summons, issued § 87(2)(b) § 87(2)(a) 160.50 § 87(2)(b). PO McHugh, and officers identified from the investigation as Lt. Erick Hernandez and Sgt. Arnold Torres allegedly cursed repeatedly at § 87(2)(b) throughout the incident (Allegations B through D). § 87(2)(b) was transported to the 47th Precinct where he was issued a second summons § 87(2)(a) 160.50 and then released. However, while at the precinct, § 87(2)(b) alleged that Lt. Hernandez blew a cloud of cigar smoke in his face (Allegation E).

§ 87(2)(b) did not wish to resolve his complaint through the CCRB mediation program.

§ 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) a § 87(2)(b) § 87(2)(b) male who resides in Virginia, provided a brief phone statement to IAB on March 2, 2007 (encl. 3-3a) and was interviewed by Inv. Roosa at the CCRB on March 19, 2007 (encl. 5-5c) § 87(2)(g)

On March 2, 2007, at approximately 10:30pm, § 87(2)(b) drove § 87(2)(b) to his apartment located at § 87(2)(b) in the Bronx and waited in his car for him to return. After a few minutes, § 87(2)(b) thought that § 87(2)(b) was taking a long time so he drove around the area to look for him. When § 87(2)(b) located § 87(2)(b) on § 87(2)(b) and § 87(2)(b) in the Bronx, § 87(2)(b) informed him that he was robbed at knifepoint by two teenagers who stole his cell phone. § 87(2)(b) and § 87(2)(b) drove around the area and located the teenagers on § 87(2)(b) and § 87(2)(b) § 87(2)(b) approached the teenagers and accused them of stealing § 87(2)(b)'s cell phone, which they denied. § 87(2)(b) searched the two teenagers' pockets and felt a cell phone on one of the teenagers' pockets and assumed it was § 87(2)(b) s. § 87(2)(b)

§ 87(2)(b) shouted for someone to call 911. However, during his IAB statement, § 87(2)(b) indicated that he placed the call to 911.

Five minutes later, four marked patrol cars which contained several uniformed and plainclothes officers arrived on the scene. However, the perpetrator who allegedly robbed § 87(2)(b) had left the scene. PO Michael Nestler, who was dressed in uniform was described as a Hispanic male, approximately 6 feet tall and Sgt. John Gazzola, who was dressed in uniform, was described as a large Hispanic male, immediately frisked one of the teenagers who was allegedly involved in the robbery and another teenager who happened to be standing in the vicinity. § 87(2)(b) told PO Nestler and Sgt. Gazzola that one of the individuals being frisked was innocent. Sgt. Gazzola instructed § 87(2)(b) to stay back. The officers allowed the two teenagers to leave the scene as additional officers, who were subsequently identified as PO Michael McHugh and Lt. Erick Hernandez, who was dressed in uniform, responded to the scene. PO McHugh, who was dressed in plainclothes, was described as a white male, approximately 6 feet 1 inch tall. PO McHugh took § 87(2)(b)'s identification and returned to his vehicle. When PO McHugh re-approached § 87(2)(b), he told him he was free to go. When § 87(2)(b) protested that the officers allowed the two civilians who were initially searched to leave the scene, § 87(2)(b) claimed that PO McHugh took him to a fence and frisked him. When § 87(2)(b) questioned why he was being frisked, PO McHugh responded, "Shut the fuck up." Lt. Hernandez, instructed PO Nestler to issue § 87(2)(b) a § 87(2)(a) 160.50 summons. Lt. Hernandez stated to § 87(2)(b) "Motherfuckers like you think you know the law." After the summons was issued, § 87(2)(b) asked if he could leave the scene and PO McHugh responded, "Get the fuck out of here." § 87(2)(b) walked to his vehicle and saw an officer described as a heavy-set Hispanic male, approximately 5 feet 5 inches tall, and recognized him as an officer who he previously filed a CCRB complaint against, and who was subsequently identified as Sgt. Arnold Torres. § 87(2)(b) said to Sgt. Torres, "I remember you. I filed a complaint against you. I'm going to file another one." Sgt. Torres pulled his baton out and said to § 87(2)(b) "Don't you dare threaten the police. Get the fuck out of the car. Now I'm taking you to the station." Sgt. Torres stated, "Motherfucker you're going to the precinct." When § 87(2)(b) questioned why he was being arrested, Sgt. Torres responded, "Because you have a big mouth. Shut the fuck up. Now I'm taking you to the precinct." § 87(2)(b) was handcuffed and taken to the 47th Precinct. Once § 87(2)(b) arrived at the 47th Precinct, Lt. Hernandez blew a cloud of cigar smoke in his face. During his IAB statement, § 87(2)(b) also indicated that Lt. Hernandez was standing in front of him near the front desk and told him to "Shut the fuck up" as he blew smoke in his face. § 87(2)(b) was issued a second § 87(2)(a) 160.50 summons and was released from the precinct.

Results of Investigation

Civilian Testimony

§ 87(2)(b) is a § 87(2)(b) § 87(2)(b) and black male, who is 150 pounds with black hair and brown eyes. § 87(2)(b) was interviewed by Inv. Roosa at the CCRB on March 19, 2007 (encl. 6-6b).

§ 87(2)(g) did not think that anyone called 911 and indicated that the police just happened to be in the area. § 87(2)(b) approximated that nine officers arrived on the scene. He also specified that two officers were dressed in plainclothes and the remaining officers were dressed in uniform. The officers instructed the two teenagers, who § 87(2)(b) identified as the individuals who robbed him, to stand against a wall. § 87(2)(b) explained to the officers that the teenagers had just robbed § 87(2)(b). However, the officers released the two teenagers and let them leave the scene. § 87(2)(b) did not articulate that any officers frisked or searched the teenagers who were ultimately released from the scene. § 87(2)(b) exited the vehicle and informed the officers that the teenagers had robbed him. § 87(2)(b) instructed § 87(2)(b) to remain inside of the vehicle and § 87(2)(b) returned to his vehicle as well. As § 87(2)(b) entered his vehicle, he told an officer, who was identified through the investigation as Sgt. Torres, that he was going to report him. Sgt. Torres said, "You cannot threaten the

police.” Sgt. Torres, with the help of another officer, pulled § 87(2)(b) out of his vehicle, held § 87(2)(b) against his vehicle and handcuffed him. While § 87(2)(b) was being removed from the vehicle, the officer who assisted Sgt. Torres removed his baton and pointed it at § 87(2)(b). § 87(2)(b) was transported to the 47th Precinct. § 87(2)(b) remained loud and angry throughout the entire incident. Unlike § 87(2)(b), § 87(2)(b) indicated that § 87(2)(b) did not receive a summons until he was brought to the precinct and he stated that he never heard any of the officers speak discourteously to § 87(2)(b) during the incident.

Witnesses

§ 87(2)(g)

Identification of Officers Interviewed

PO Nestler and PO McHugh’s name and tax registry numbers appear on the summonses that were issued to § 87(2)(b). According to the 47th Precinct roll call for March 2, 2007, PO Nestler was Sgt. Gazzola’s operator. The roll call also indicated that PO McHugh was a member of the 47th Precinct anti crime team, which was supervised by Lt. Hernandez and Sgt. Torres. During Sgt. Gazzola’s CCRB statement he indicated that PO Tracy Day also responded to the scene. Furthermore, the roll call identified PO Tyrone Furby as being partnered with PO Day on the above date. Sgt. James Flannery, who was the patrol supervisor on the above date, was mentioned as possibly responding to the scene. § 87(2)(g)

PO Michael Nestler

PO Nestler prepared the summons #§ 87(2)(b), which was issued to § 87(2)(b) § 87(2)(a) 160.50 on March 2, 2007 (encl. 7).

CCRB Statement

PO Nestler is a § 87(2)(b)-old white male who is 6 feet 2 inches tall, 190 pounds with brown hair and hazel eyes. He has 3 years tenure with the NYPD. PO Nestler was interviewed at the CCRB by Inv. Missale on December 3, 2007 (encl. 7c-7d). On March 2, 2007, PO Nestler worked from 3:00 p.m. until 11:35 p.m. PO Nestler was Sgt. Gazzola’s operator. Both officers were in uniform and assigned to marked patrol car # 1961. PO Nestler had the following memo book entry regarding the incident: ***At 9:55 p.m., he received a radio call for a robbery in progress at § 87(2)(b) and § 87(2)(b). At 10:15 p.m., the robbery was deemed negative and a summons was issued to an individual § 87(2)(a) 160.50. PO Nestler issued summons # § 87(2)(b) § 87(2)(a) 160.50***

On March 2, 2007, at approximately 9:55 p.m., PO Nestler and Sgt. Gazzola received a radio call regarding a robbery in progress at § 87(2)(b) and § 87(2)(b) in the Bronx. PO Nestler confirmed that the radio call specified that the perpetrators who were dressed in black and red were in possession of a gun. Even though it was specified over the radio at the time of the incident, PO Nestler could not recall the race or physical description of the perpetrators at the time of the interview. PO Nestler and Sgt. Gazzola were the first officers to respond to the scene. Upon responding, PO Nestler and Sgt. Gazzola stopped two individuals at the scene who fit the description and questioned them regarding the robbery. A male, who was subsequently identified from his arrest as § 87(2)(b), approached Sgt. Gazzola and PO Nestler from behind. PO Nestler specified that § 87(2)(b) immediately began yelling and saying offensive things to the officers. However, he could not recall § 87(2)(b)’s exact statements. § 87(2)(b) who according to PO Nestler also matched the physical description that was provided in the robbery radio call, refused to comply with Sgt. Gazzola’s instructions. PO Nestler recalled that § 87(2)(b) was wearing a loose black coat. PO Nestler frisked § 87(2)(b)’s waist, pocket and groin area because he fit the description of the robber and was at PO Nestler’s gun side, therefore, he feared

for his safety. § 87(2)(b) complied with the frisk but would not keep his hands on the wall that he was placed against. Additional officers arrived at the scene. PO Nestler issued § 87(2)(b) a summons § 87(2)(a) 160.50. After being issued the summons, § 87(2)(b) was instructed to leave the scene. PO Nestler indicated that something ensued between § 87(2)(b) and Lt. Hernandez. However, PO Nestler was too far away to hear what was being said between the two. PO Nestler also indicated that Sgt. Torres and Lt. Hernandez handcuffed § 87(2)(b). PO Nestler never used profanity towards § 87(2)(b) and did not overhear any officers use any profanity towards § 87(2)(b) during the incident. After § 87(2)(b) was arrested, Sgt. Gazzola and PO Nestler resumed patrol and did not return to the precinct.

Sgt. John Gazzola

Sgt. Gazzola is a § 87(2)(b)-old white male who is 6 feet 2 inches tall, 260 pounds with brown hair and brown eyes. He has 7 years tenure with the NYPD. Sgt. Gazzola was interviewed at the CCRB by Inv. Missale on May 23, 2007 (encl. 8c-8d). Sgt. Gazzola worked the same tour as PO Nestler. Sgt. Gazzola's memo book entry contained the same information as PO Nestler except it also identified PO Day as being present at the scene (encl. 8-8b). § 87(2)(g)

After responding to § 87(2)(b) and § 87(2)(b) in the Bronx with PO Nestler and conducting a preliminary investigation at the scene, § 87(2)(b) immediately approached Sgt. Gazzola from behind. Sgt. Gazzola asked § 87(2)(b) to step back several times until he had concluded his investigation of the two individuals he was questioning. However, § 87(2)(b) remained directly behind Sgt. Gazzola as he yelled at him. § 87(2)(b) used profanity towards the officers; however, Sgt. Gazzola could not recall his exact statements. Sgt. Gazzola did not assist in frisking § 87(2)(b) because he was pre-occupied with the two individuals he was questioning. Sgt. Gazzola instructed PO Nestler to keep § 87(2)(b) away from him. However, Sgt. Gazzola never mentioned whether § 87(2)(b) was frisked at the scene. Sgt. Gazzola was unable to positively conclude that the two individuals who he had questioned about the robbery had committed the crime and so they were released from the scene. Sgt. Gazzola specified that there was an unidentified female at the scene who was on a phone with the alleged victim of the robbery. Sgt. Gazzola observed a "handful" of passerby's observing the incident. As § 87(2)(b) was instructed to leave the scene and entered his vehicle he said to the officers, "I know where you all live." Sgt. Gazzola interpreted this statement as a direct threat and so § 87(2)(b) was arrested. Sgt. Gazzola could not recall which officer handcuffed § 87(2)(b). Sgt. Gazzola identified PO McHugh, Sgt. Torres and PO Day as being present at the scene. Sgt. Gazzola never used profanity towards § 87(2)(b) and did not overhear any officers use any profanity towards § 87(2)(b) during the incident.

PO Michael McHugh

PO McHugh prepared summons # § 87(2)(b), which was issued to § 87(2)(b) § 87(2)(a) 160.50

CCRB Statement

PO McHugh is a § 87(2)(b)-old white male who is 6 feet 3 inches tall, 240 pounds with red hair and blue eyes. He has 7 years tenure with the NYPD and has since been promoted to a sergeant and transferred to the 34th Precinct. PO McHugh was interviewed at the CCRB by Inv. Missale on May 15, 2007 (encl. 9c-9d). PO McHugh worked from 5:30 p.m. on March 2, 2007 until 2:05 a.m. on March 3, 2007. PO McHugh was assigned to the 47th Precinct anti crime unit and was partnered with Lt. Hernandez and Sgt. Torres. He was assigned to unmarked § 87(2)(e), § 87(2)(f) and was dressed in plainclothes. PO McHugh had the same memo book entry as PO Nestler (encl. 9a-9b).

On March 2, 2007 at approximately 10:00 p.m., PO McHugh, Sgt. Torres and Lt. Hernandez received a radio call for a robbery in progress at § 87(2)(b) and § 87(2)(b) in the Bronx. Upon arriving, there

were already officers at the scene. PO McHugh could not recall which officers or how many were at the scene. PO McHugh observed three civilians being questioned and § 87(2)(b) who was identified from the summons he was issued, was one of them. An officer, whom PO McHugh could not recall, was issuing § 87(2)(b) a summons § 87(2)(a) 160.50. PO McHugh was informed of the charge of the summons by another officer at the scene, although he could not recall which one. § 87(2)(b) was irate and yelled at the officers. Similar to Sgt. Gazzola, PO McHugh observed an unidentified woman who was speaking on a cell phone with the alleged victim of the robbery. The victim, however, refused to come to the scene and the individuals who were stopped were subsequently released. § 87(2)(b) remained at the scene and continued to yell at the officers in what appeared to be a Jamaican language. A crowd of ten to fifteen people gathered in the area. § 87(2)(b) told the officers that he would find out where they all lived. PO McHugh handcuffed and frisked § 87(2)(b) and he was transported to the 47th Precinct. At the precinct, § 87(2)(b) was issued another summons § 87(2)(a) 160.50 and he was subsequently released. When asked if § 87(2)(b)'s nephew was the victim of the robbery, PO McHugh replied, "No." PO McHugh never used any profanity during the incident and did not hear any other officers use profanity towards § 87(2)(b).

Lt. Erick Hernandez

Lt. Hernandez is a § 87(2)(b)-old Hispanic male who is 5 feet 8 inches tall, 170 pounds with brown hair and brown eyes. He has 15 years tenure with the NYPD. Lt. Hernandez was interviewed at the CCRB by Inv. Missale on July 27, 2007 (encl. 10b-10c). Lt. Hernandez worked the same tour as PO McHugh and was assigned to special operations in marked patrol car # 1271. Lt. Hernandez was dressed in uniform. Lt. Hernandez worked alone. Lt. Hernandez's memo book indicates that at 6:20 p.m. he was working patrol in RMP # 1271 with Lt. Cullen. Although Lt. Hernandez did not have any entries in his memo book regarding the incident, § 87(2)(b)

On March 2, 2007 at approximately 10:00 p.m., Lt. Hernandez responded to a call regarding a robbery in progress at § 87(2)(b) and § 87(2)(b) in the Bronx. The radio call provided a physical description as well as clothing description for the alleged perpetrators; however, Lt. Hernandez could not recall this information at the time of the interview. Upon arriving at the location, Lt. Hernandez observed a male, who was subsequently identified as § 87(2)(b) that fit the description provided over the radio call. Lt. Hernandez and PO McHugh, who also arrived at the scene, approached § 87(2)(b) and another civilian standing near him. § 87(2)(b) yelled, used profanity and waived his arms in protest of the officers approaching him. Lt. Hernandez explained to § 87(2)(b) that he matched the description of one of the perpetrators. Since the radio call specified that the perpetrator had a weapon, § 87(2)(b) was frisked. Lt. Hernandez could not recall which officer frisked him. § 87(2)(b) informed Lt. Hernandez that his niece was the victim of the robbery. Lt. Hernandez asked § 87(2)(b) to locate his niece but § 87(2)(b) responded, "No. I will get these motherfuckers myself." Lt. Hernandez ordered a patrol car to canvass the neighborhood to try and locate the perpetrators involved in the robbery. The canvass yielded negative results. Eventually, § 87(2)(b) was told he could leave the scene. § 87(2)(b) continued to curse at the officers as he walked to his vehicle. § 87(2)(b) opened the driver's side door of his minivan and stood on the floor of the vehicle as he faced the officers. Lt. Hernandez, Sgt. Torres and PO McHugh approached § 87(2)(b) and § 87(2)(b) attempted to close the car door. The three officers stopped the door from closing and removed § 87(2)(b) from the vehicle. All three officers assisted in handcuffing § 87(2)(b) because he resisted. § 87(2)(b) was issued a summons at the precinct. Lt. Hernandez resumed patrol and did not return to the station house after § 87(2)(b) was transported there. Lt. Hernandez never used profanity towards § 87(2)(b) and did not hear any officers use profanity.

Sgt. Arnold Torres

Sgt. Torres is a § 87(2)(b)-old Hispanic male. Sgt. Torres has 17 years tenure with the NYPD and has since been transferred to the Internal Affairs Bureau. Sgt. Torres was interviewed at the CCRB by Inv. Missale on

November 21, 2007 (encl. 11c-11d). On March 2, 2007, Sgt. Torres was assigned as the anti crime supervisor and was partnered with PO McHugh. Sgt. Torres was assigned to unmarked patrol § 87(2)(b) and was dressed in plainclothes. Sgt. Torres had the same memo book entry as PO McHugh (encl. 11-11a). At 11:00 p.m., Sgt. Torres called IAB to file § 87(2)(b)'s civilian complaint.

On March 2, 2007 at approximately 9:15 p.m., Sgt. Torres responded to § 87(2)(b) and § 87(2)(b) in the Bronx in regards to a robbery in progress. When Sgt. Torres arrived, several units, of which he could not recall, were already present. Sgt. Torres stated that two individuals had been stopped by the responding officers. An individual, who was subsequently identified from his arrest as § 87(2)(b) was being issued a summons § 87(2)(a) 160.50. After receiving the summons, § 87(2)(b) walked back to his vehicle. As § 87(2)(b) walked to his vehicle he repeatedly threatened and cursed at Sgt. Torres and PO McHugh and at one point stated, "You cops...I'm going to follow you." At this moment a young black male exited § 87(2)(b)'s vehicle. Sgt. Torres instructed the individual to stay in the vehicle in case the situation escalated. Ten to fifteen civilians gathered at the scene. Sgt. Torres instructed § 87(2)(b) to leave the location but he did not comply. Sgt. Torres instructed PO McHugh to place § 87(2)(b) under arrest. Sgt. Torres could not recall if § 87(2)(b) attempted to enter his vehicle. Sgt. Torres stated that § 87(2)(b) was frisked, however, he could not recall if § 87(2)(b) had been placed in handcuffs before he was frisked. § 87(2)(b) was taken to the stationhouse by PO McHugh and Sgt. Torres where he was issued a summons. Sgt. Torres never used profanity during the incident and did not hear any officers use profanity towards § 87(2)(b). Sgt. Torres did not observe any officers, specifically Lt. Hernandez, smoking a cigar inside of the precinct.

PO Tracy Day

PO Day is a § 87(2)(b)-old bald black male who is 5 feet 8 inches tall, 170 pounds with brown eyes. He has 16 years tenure with the NYPD. PO Day was interviewed at the CCRB by Inv. Missale on August 22, 2007 (encl. 12b-12c). On March 2, 2007, PO Day was assigned to a special assignment auto, which handles low priority cases. PO Day was partnered with PO Tyrone Furby in marked patrol car # 1593 and both were dressed in uniform. PO Day did not have any entries in his memo book regarding the incident (encl. 12-12a).

On March 2, 2007, at approximately 10:30 p.m., PO Day responded to a car accident a block away from § 87(2)(b) and § 87(2)(b) in the Bronx. While at the vehicle accident, PO Day observed ten to fifteen individuals standing on § 87(2)(b) and § 87(2)(b) watching a commotion involving police officers. PO Day walked to the crowd and asked them to disperse and then walked back towards the vehicle accident. PO Day was at the scene for five minutes and did not hear any officers use profanity or witness any civilians being frisked. PO Day did not have any direct contact with the individuals who were involved in the incident, specifically § 87(2)(b) or § 87(2)(b).

PO Tyrone Furby and Sgt. James Flannery

PO Furby is a § 87(2)(b)-old black male who is 5 feet 9 inches tall, 230 pounds with brown hair and brown eyes. He has 9 years tenure with the NYPD. Sgt. Flannery is a § 87(2)(b)-old white male who is 6 feet 4 inches tall, 245 pounds with brown hair and brown eyes. He has 12-years tenure with the NYPD and had recently been promoted to a lieutenant and transferred to PSA 5. PO Furby and Sgt. Flannery were interviewed at the CCRB by Inv. Missale on August 7, 2007 and August 9, 2007, respectively (encl. 13c-13d & 14b-14c). Sgt. Flannery's memo book entry confirms that he was not working on March 2, 2007 (encl. 14-14a) and PO Furby confirmed that he worked with PO Day but could not recall the incident and did not have any entries in his memo book regarding the incident (encl. 13-13a).

Police Department Documents

SPRINT Report, Command Log and Roll Call (encl. 15-17e)

The SPRINT report indicates that at 9:55 p.m. a female caller reported that six males were trying to rob her brother in the vicinity of § 87(2)(b) and § 87(2)(b) in the Bronx. It was also reported that the

weapons possessed by the suspected perpetrators are unknown. The SPRINT report described two of the perpetrators as black males wearing a red hooded sweatshirt and a black jacket. At 9:56 p.m., the first officers arrived and deemed that a robbery had not occurred. At 9:57 p.m., additional units arrived on the scene. At 9:58 p.m., two individuals were stopped at the scene. The 47th Precinct command log for March 2, 2007 confirmed that PO McHugh arrested § 87(2)(b) § 87(2)(a) 160.50. The 47th Precinct tour 3 roll call for March 2, 2007 confirms that the officers who were interviewed were on duty during the incident.

Police Officer CCRB History

PO Nestler, Sgt. Torres and Lt. Hernandez have no prior substantiated CCRB allegations. PO McHugh has one prior substantiated CCRB allegation in which he received instructions, involving case # 200301006 for failure to obtain medical treatment (encl. 2-2b).

Complainant CCRB History

§ 87(2)(b) has filed three prior CCRB complaints, § 87(2)(b)

§ 87(2)(b)

Disposition of Summonses

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

Conclusions and Recommendations

Identification of Subject Officers

§ 87(2)(b) described the officer who allegedly frisked him as a white male, approximately 6 feet 1 inch tall and dressed in plainclothes. Although PO McHugh was one of the only officers present who matched this description and was dressed in plainclothes, PO Nestler testified that he frisked § 87(2)(b) when he first arrived on the scene because his safety was in jeopardy. PO Nestler was in uniform but is a 6 feet 2 inch white male. § 87(2)(g). PO McHugh testified that he frisked § 87(2)(b) only when the decision was made to arrest him and transport him to the precinct. PO Nestler responded to the scene before PO McHugh. Regarding Allegation B, § 87(2)(b) testified that the officer who spoke obscenely towards him was dressed in plainclothes. The physical description § 87(2)(b) provided for this officer, which was a white male approximately 6 feet 1 inch tall and dressed in plainclothes, matched that of PO McHugh. Furthermore, § 87(2)(b) clarified during his CCRB statement that the officer who issued him the summons at the scene was not the same officer who cursed at him. § 87(2)(g).

§ 87(2)(b) reported that the Hispanic officer in uniform was named Fernandez or Hernandez. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) also indicated that the officer who spoke obscenely towards him was a Hispanic male who was dressed in plainclothes. § 87(2)(g)

§ 87(2)(b) Furthermore, there were only two sergeants present during the incident. Sgt. Gazzola was in uniform, but is a white male. Sgt. Torres is a Hispanic male, but was dressed in plainclothes.

Undisputed Facts

It is undisputed that a complaint of a robbery was made at § 87(2)(b) and § 87(2)(b) in the Bronx. It is undisputed that the radio call regarding the above robbery provided a physical and clothing

description for the alleged perpetrators. It is undisputed that § 87(2)(b) was loud and aggressive during the incident. It is undisputed that § 87(2)(b) was issued two summonses § 87(2)(a) 160.50. It is undisputed that § 87(2)(b) was frisked at the scene. It is undisputed that § 87(2)(b) was arrested by Sgt. Torres and PO McHugh and released at the precinct with a summons.

Disputed Facts

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Credibility Analysis

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Sgt. Torres even admitted to instructing PO McHugh to arrest § 87(2)(b). PO Day, PO Furby and Sgt. Flannery were not directly involved in the above incident or did not recall exactly what occurred. § 87(2)(g)

Allegation A: PO Michael Nestler frisked § 87(2)(b)

§ 87(2)(g)

[REDACTED]

[REDACTED] The radio call also provided a physical and clothing description for two of the alleged perpetrators. However, the SPRINT report noted that it was unknown at the time whether the perpetrators were in possession of weapons. PO Nestler and Sgt. Gazzola, the first two officers who arrived on the scene, although they could not recall the specific description that was provided during the radio call, both testified that § 87(2)(b)'s physical appearance matched what was provided during the radio call. Lt. Hernandez also testified during his CCRB statement that § 87(2)(b) matched the physical description of one of the alleged perpetrators. In addition to the fact that § 87(2)(b) fit the matched the physical description of one of the perpetrators, PO Nestler testified that he frisked § 87(2)(b)'s waist, pocket and groin area because he stood on the side of PO Nestler that contained his firearm. § 87(2)(g)

[REDACTED] In accordance with the New York City Police Department Legal Bureau supplemental material to the “*Constitutional Law Film Series*” on *Stop, Question and Frisk*, entitled “*Street Encounter*” (encl. 1-1b), a victim of a crime is credible and the

information he/she provides can be the basis for certain police actions. A crime victim, who gives a description of a perpetrator, in some detail, at least establishes reasonable suspicion to stop and question a person fitting the description, who is found in the vicinity of the crime. When a police officer has stopped a person based on reasonable suspicion, he or she may frisk the person for weapons where he reasonably suspects he/she is in danger of physical injury. Furthermore, the frisk of a suspect may always be conducted if the stop was based on a reasonable suspicion that the suspect is, was, or is about to commit a robbery, burglary or homicide. The courts recognize the obvious fact that in such dangerous situations, any officer will justifiably be fearful for his/her personal safety and a protective frisk may always be conducted. § 87(2)(g)

Allegation B: PO Michael McHugh spoke obscenely to § 87(2)(b)

Allegation C: Lt. Erick Hernandez spoke obscenely to § 87(2)(b)

Allegation D: Sgt. Arnold Torres spoke obscenely to § 87(2)(b)

§ 87(2)(b) alleged that PO McHugh said, “Shut the fuck up” and “Get the fuck out of here.” § 87(2)(b) also alleged that Lt. Hernandez said, “Motherfuckers like you think you know the law,” and “Shut the fuck up.” Finally, § 87(2)(b) alleged that Sgt. Torres said, “Get the fuck out of the car. Motherfucker you are going to the precinct. Shut the fuck up.” PO McHugh, Sgt. Torres and Lt. Hernandez denied using any profanity throughout the duration of the incident. Furthermore, PO Day, Sgt. Gazzola and PO Nestler stated that they did not hear any officers use profanity during the incident. § 87(2)(g)

Allegation E: Lt. Erik Hernandez acted rudely toward § 87(2)(b)

§ 87(2)(b) alleged that Lt. Hernandez stood in front of him near the front desk inside of the precinct and blew a cloud of smoke in his face from a cigar that he was smoking. Lt. Hernandez testified that he resumed patrol directly after the incident involving § 87(2)(b) and did not transport or interact with § 87(2)(b) at the precinct. Even though Lt. Hernandez’s memo book notes that he went on patrol with Lt. Cullen at 6:20 p.m., Lt. Hernandez testified that he was working alone at the time of this incident and arrived by himself to the scene. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: